

22STCV33012 22STCV33012

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Division: Civil Law and Motion

Department: 534

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Case Number: 22STCV33012 Hearing Date: August 20, 2026 Dept: 534

Background of 22STCV33012

On October 7, 2022, Bo Zhang filed this action arising out of the August 22, 2022 foreclosure sale of real property located at 661 W. Lemon Avenue Arcadia California 91007. Plaintiff alleged Defendants misrepresented their intent to occupy the property to deprive Plaintiff the right to purchase the property as a tenant under Civil Code section 2924m(c)(2). The complaint asserted causes of action for fraudulent misrepresentation and violation of Business and Professions Code § 17200.

On November 8, 2022, the court granted an injunction enjoining Defendants Dvir Cohen, Yafit Cohen, and Clear Recon Corp. from (1) evicting Zhang from 661 W. Lemon Avenue, Arcadia, CA 91007 and (2) transferring title to the Lemon Property.

On July 14, 2023, Defendants Dvir Cohen and Yafit Cohen filed the First Amended Cross-Complaint Zhang, Va Yu Neumann, Jianying Wu, United Premier Development, LLC, and Yukee Architectural Design Corp. asserting claims for fraud and negligent misrepresentation.

On January 26, 2024, the parties to this action signed a Settlement Agreement and Mutual Release. On June 21, 2024, the Court granted Defendants' motion to enforce the settlement agreement, specifically the provision requiring Zhang to move to dissolve the November 8, 2022 preliminary injunction..

On March 5, 2025, the court granted another motion to enforce the settlement agreement providing: "Plaintiff's November 8,

2022 Preliminary Injunction is dissolved based on the Settlement Agreement and the Parties are ordered to take all actions to effectuate the sale of the Property as contemplated by the Settlement Agreement, including all actions relating to the escrow contemplated thereby. The Court will retain jurisdiction under California Code of Civil Procedure Section 664.6.”

On March 21, 2025, the court entered an order granting an ex parte application to enforce the settlement requiring Dvir Cohen and Yafit Cohen to sign various documents to open escrow and effectuate the sale of the property to Yukee Architectural Design Corp.

On March 24, 2025, Dvir Cohen and Yafit Cohen filed an appeal of the March 5, 2025 and March 21, 2025 orders.

On August 1, 2025, Judge Holly J. Fujie issued an order finding 22STCV33012 and 22PDUD02324 Cohen v. Neumann were not related within the meaning of California Rules of Court, rule 3.300(a).

On December 1, 2025, Judge Fujie issued an order providing: “the action, including the March 5, 2025 Minute Order in its entirety, is stayed pending resolution of the appeal.”

Background of 22PDUD02324

On September 16, 2022, Dvir Cohen and Yafit Cohen filed unlawful detainer action 22PDUD02324 against Eva Yu Neumann and Jianying Wu related to real property located at 661 W. Lemon Avenue, Arcadia, CA 91007.

On October 15, 2025, the parties represented possession was no longer at issue. On January 12, 2026, the court granted a motion to reclassify the case as an unlimited civil case.

On July 14, 2026, the court stayed this case in its entirety, pending further hearing on a motion to stay scheduled for November 6, 2026.

Motion

On July

14, 2026, Bo Zhang, Eva Neumann, Jianying Wu, United Premier Development LLC, and Yukee Architectural Design Corp filed the instant motion seeking to relate 22STCV33012 and 22PDUD02324.

Opposition

The

opposition argues the moving parties unreasonably delayed in seeking to relate the two cases and its filing violates the stay issued by Judge Fujie.

The

request for judicial notice of various court orders entered in the two cases is GRANTED. (Evid. Code § 452(d).)

Reply

The

Court did not receive a timely reply.

Motion

to Relate Cases

Standard

Pursuant

to Superior Court of Los Angeles County Local Rules, rule 3.3(f)(3), “[i]n the event that the judge designated under California Rules of Court, rule 3.300(h)(1)(A)(B)(C) to make the decision, does not order related any of the cases set forth in the Notice of Related Cases, any party may file a motion to have the cases related. Department 1 [renumbered as of May 4, 2026, Department 534] shall hear the motion, if the cases are all pending in the Central District or are pending in two or more different districts.”

The

Court Declines to Relate the Cases at Issue

Movants seek an order relating the cases pursuant to California Rules of Court, rule 3.300(h)(1)(D) and Code of Civil Procedure section 1008.

Throughout their motion, Movants refer to “reconsideration” pursuant to Section 1008. (Not. at 2:10-11; Mot. at 4:24-25, 7:26, 8:9.) As they acknowledge, a motion for reconsideration must be made within 10 days after service of written notice of entry of the order. (Mot. at 8:2; Code Civ. Proc. § 1008(a).) Thus, the motion is untimely as a statutory motion for reconsideration of the August 1, 2025 order.

In opposition, Cross-Complainants argue the motion to relate is also untimely. However, neither the California Rules of Court, nor the Local Rules impose a deadline for a motion to relate. (SCLAC Local Rules, rule 3.3(f)(3); Cal. R. Ct., rule 3.300(h)(1)(D).) The 15-day deadline relied upon applies to the filing of the initial Notice of Related Case, not a subsequent motion. (Cal. R. Ct., rule 3.300(e) (“The Notice of Related Case must be served and filed as soon as possible, but no later than 15 days after the facts concerning the existence of related cases become known.”).)

On August 1, 2025, Judge Holly J. Fujie issued an order finding 22STCV33012 and 22PDUD02324 were not related. The motion is therefore properly before this Court. (SCLAC Local Rules, rule 3.3(f)(3); Cal. R. Ct., rule 3.300(h)(1)(D).)

The opposition also contends the motion violates the stay pending appeal entered by Judge Fujie on December 1, 2025 pursuant to Code of Civil Procedure section 916. The opposition argues “[b]ased on California Code of Civil Procedure, § 916 when a trial court issues a stay order concerning all proceedings, and in all respects while a case is on appeal, that order acts as an absolute bar to any further litigation activity in that case at the trial court level, unless and until the stay order is lifted.” (Opp. at 6:12-15.) However, Code of Civil Procedure section 916, the primary statute and authority cited in the stay order, provides a stay as to “the judgment or order appealed from or upon the matters embraced therein or affected thereby.” An administrative matter of judicial assignment via a Notice of Related Case is not a matter embraced or affected by the orders appealed here.

Cases

are related when they (1) involve the same parties and are based on the same or similar claims, (2) arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact, (3) involve claims against, title to, possession of, or damages to the same property, or (4) are likely for other reasons to require substantial duplication of judicial resources if heard by different judges. (Cal. R. Ct., rule 3.300(a).) Movants contend the cases satisfy every enumerated ground.

The

cases do not involve the same parties as only Eva Neumann, Jianying Wu, Dvir Cohen, and Yafit Cohen are common to both cases. (Cal. R. Ct., rule 3.300(a)(1).) The cases also are not based on the same or similar claims. (Ibid.) The cases also do not arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact. (Cal. R. Ct., rule 3.300(a)(2).) Unlawful detainer proceedings only concern straightforward issues regarding the right to possession of disputed premises and the award of damages for any unlawful detention. (Martin-Bragg v. Moore (2013) 219 Cal.App.4th 367, 385.)

Furthermore,

the cases do not involve claims against, title to, possession of, or damages to the same property. (Cal. R. Ct., rule 3.300(a)(3).) Possession is no longer at issue in the unlawful detainer case. (See e.g. Sugars Decl. ¶ 4 ("That case is no longer an unlawful detainer proceeding. It has been converted to an ordinary civil case in which the only remaining issue is holdover damages.")) The cases do not appear likely to require a substantial duplication of judicial resources if heard by different judges. (Cal. R. Ct., rule 3.300(a)(4).) Both cases are currently stayed and involve separate legal and factual issues.

The

Court finds the cases are not related within the meaning of California Rules of Court, rule 3.300 and the motion is DENIED.

The

opposing party's request for an O.S.C. re Contempt is DENIED.

Conclusion

Motion

to Relate Cases and, in the Alternative, Motion for Reconsideration is DENIED.

Counsel

for Defendant/Cross-Complainants Dvir Cohen and Yafit Cohen is ordered to give notice.